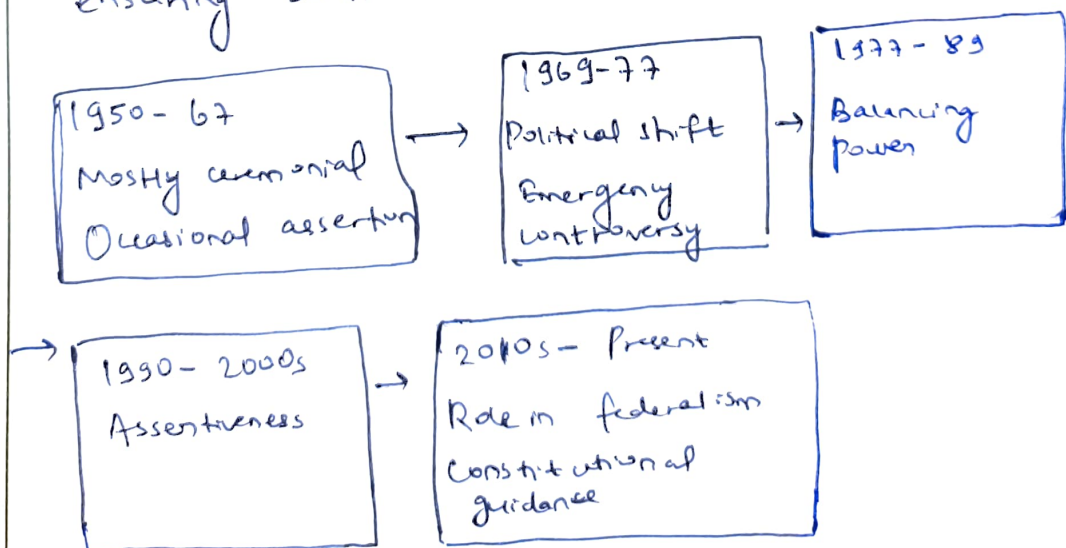


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Q-"The office of the President of India has evolved from being a nominal head to an institution of significant influence." Examine the constitutional provisions related to the President and analyze how the role has evolved over the years.

Ans. The President of India was envisioned as a ceremonial head of state, reflecting the principles of Parliamentary democracy where real power lies with Council of Ministers (CoM). Initially, President functioned as rubber stamp but over years the office has evolved into constitutional guardian ensuring democratic stability.



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Constitutional Provisions —

Aspect	President of India
Appointment	Elected by elected members of both Houses of Parliament + state legislative assembly + Delhi + Puducherry (<u>Art 54</u>)
Qualifications	• Citizen of India • 35 years of age • Qualified to be elected as Lok Sabha member etc
Tenure	5 years from the date of assuming office (<u>Art 36</u>)
Executive powers	• Appoints PM, ministers, Governors, Judges of SC and HC etc • All executive action taken in his name (<u>Art 77</u>)
Legislative powers	• Summons and Prorogue Parliament • Dissolve Lok Sabha (<u>Art 85</u>) • Assent to bills • Promulgate ordinances (<u>Art 123</u>)
Financial powers	• Union Budget to be laid before Parliament • Prior recommendation for Money Bill (<u>Art 110</u>)
Judicial powers	• Can grant pardons, reprieves etc • Seek Supreme Court advice: ↳ Matter of public importance ↳ Matter arising out of pre-constitutional treaty

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Emergency powers	Can declare National, State and Financial emergency
Discretionary powers	Limited, mostly act on aid and advice of COM (Art 74)
Veto power	• Art 111 2) Assent, withhold assent • Constitutional Amendment Bill 3) neither reject nor return (Art 368, 24th CAA)
Impeachment	• By elected and nominated members of Lok Sabha and Rajya Sabha • No joint sitting • Ground 2) violation of constitution • Majority 2) 2/3rd of total strength of House
Vacancy	• Election within 6 months (Art. 62) • Vice President to officiate as President (Art 63)
Relationship with COM	• COM with PM as head to aid and advise (Art 74) • Can return advice for reconsideration once • Must act on advice after reconsideration
Reports and Address	• Lays reports of CAG, UPSC, NESC/ST, BC before Parliament • Annual Financial Statement laid upon President's orders

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Evolution of President's role —

Phase I : Nominal Head (1950-70s)

- ↳ Role remained ceremonial
- ↳ 42nd CAA, 1976 made it mandatory for President to act on ministerial advice

Phase II : Assertion of Discretion (1980s-1990s)

- ↳ Rise of coalition politics made role of President crucial in govt formation
- ↳ SR Bommai case, 1994 limited misuse of President's power

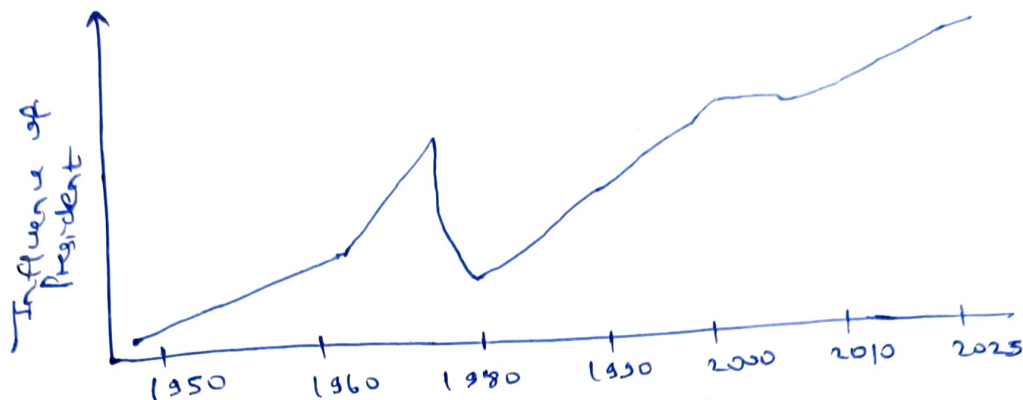
B. Shiva Rao argues that President's role is evolving into a more advisory and constitutional guardian role.

Phase III : More active role (2000s-Present)

- ↳ APJ Kalam refused to sign the Office of Profit Bill, asserting independent judgement
- ↳ Pranab Mukherjee played a stabilizing role during 2014 political transition
- ↳ Droupadi Murmu - first tribal woman President symbolising diversity, role in resolving political crisis

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Factors leading to evolution of President's role -

① Coalition Politics -

The era of coalition government made President's role in government formation crucial.

② Judicial Pronouncements -

Cases like SR Bommai restrict the use of Article 356

③ Ordinance Powers -

Rise in ordinance rejection
eg., APJ Abdul Kalam rejecting office of Profit Bill

④ Increased public engagement -

Presidents like Kalam and Mukherjee actively engaged in national debates

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Subhash Kashyap argues that President though bound by ministerial advice is not a mere rubber stamp but a constitutional conscience-keeper.

Assentive President may not fit into constitutional scheme while agreeable President will erode the dignity of the office. So, we need neither "an unthinking rubber stamp" nor "an overzealous interventionist." She must be a vigilant guardian of constitution and its values, embodiment of stability and continuity.